IN THE COURT OF APPEALS OF MISSISSIPPI

CHARLES WRIGHT **APPELLANT**

v. **No. 2016-WC-01264-COA**

TURAN-FOLEY MOTORS, Inc. **APPELLEE**

AMICUS CURIAE BRIEF OF THE MISSISSIPPI ASSOCIATION FOR JUSTICE IN SUPPORT OF APPELLANT CHARLES WRIGHT

On Appeal from the
Workers Compensation Commission
No. 14-08387-M-7334-C

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CHARLES WRIGHT **APPELLANT**

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TURAN-FOLEY MOTORS, Inc. **APPELLEE**

CERTIFICATE OF INTERESTED PERSONS

Pursuant to Miss. R. App. P. 28(a)(1), the undersigned counsel of record certifies that the following listed persons have an interest in the outcome of this case. These representations are made in order that the Justices of the Supreme Court and/or the Judges of the Court of Appeals may evaluate possible disqualification or recusal.

1. Charles Wright, *Appellant*
2. Rogen K. Chhabra and Daryl M. Gibbs, of Chhabra & Gibbs, P.A., *Counsel for the Appellant*
3. Turan-Foley Motors, Inc., *Appellee*
4. Karl Steinberger and Rebecca Hawkins, of HEIDELBERG, STEINBERGER, COLMER, & BURROW, P.A., *Counsel for Appellee*
5. Mississippi Automobile Dealers Assoc., *Carrier*
6. Walter Johnson and W. Abram Orlansky, WATKINS & EAGER, PLLC
7. Mississippi Association for Justice, *Amicus Curiae*
8. Cynthia I. Mitchell, of Merkel & Cocke, P.A., and David Neil McCarty, of David Neil McCarty Law Firm, PLLC, *Counsel for Amicus Curiae MAJ*
9. Honorable Robert J. Arnold, III, Administrative Law Judge
10. Honorable Liles Williams; Honorable Thomas A. Webb; and Honorable Beth Harkins Aldridge, of the Mississippi Workers' Compensation Commission

So CERTIFIED, this the 20th day of December, 2016.

Respectfully submitted,

/s/ David Neil McCarty
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Introduction

One of the most crucial themes in any adversarial proceeding is whether the witness is telling the truth. Ascertaining the credibility of a witness is a huge part of any advocate's case, whether plaintiff or defense. Testing a witness for bias is essential, perhaps especially so when the witness is an expert. The factfinder of the proceeding—whether judge or jury—must always be allowed to hear about the relationship between a witness and a party which could reveal favorable treatment.

This is why inquiring if an expert witness is biased because they have been paid to testify is so incredibly important. It is the position of the Mississippi Association for Justice[1] that an advocate must be allowed to reasonably test the bias of an expert witness in regards to their financial compensation. Such an inquiry serves the longstanding rights of confrontation, fulfills the goals of our Rules of Evidence, and assures that the factfinder is presented with credible witnesses and reliable information.

In this case, the attorney for a claimant was sanctioned for attempting to inquire into the financial records of a testifying expert to ascertain if there was evidence of bias. Because a zealous advocate must be allowed to reasonably inquire into bias due to financial compensation, the Court should overturn any such order limiting that essential inquiry.

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[1] The Mississippi Association for Justice is composed of attorneys from across the State of Mississippi. MAJ is committed to strengthening the civil justice system so that deserving individuals can get justice and wrongdoers are held accountable. MAJ opposes efforts to weaken basic legal protections and further stack the deck against average Mississippians. Many MAJ members have a varied practice representing clients in family law matters, criminal defense, real estate and business transactions, and a myriad of other areas. The group is adamant that all Mississippians benefit when individuals represented by attorneys have a fair chance to get justice through our civil justice system.

Argument

I. Inquiry into Bias Is a Core Function of Cross-Examination.

Because the Commission's Order upheld a ruling which eviscerated the Claimant's right to inquire about the bias of the medical expert of the defendant, it must be reversed.

As set out in Mr. Wright's Principal Brief, the Commission uses relaxed versions of our Rules of Evidence.[2] Yet its ruling burdens all proceedings before that body, and has the potential to infect other decisions in our State, damaging the rights of claimants, consumers, plaintiffs, and defendants in civil and criminal trials alike.

Our Rules of Evidence provide that "Cross-examination shall not be limited to the subject matter of the direct examination and matters affecting the credibility of the witness,"[3] which in turn allows a wide-open cross-examination.

Furthermore, "[t]he right to confrontation and cross-examination extends to and includes the right to fully cross examine the witness on every material point relating to the issue to be determined *that would have bearing on the credibility of the witness* and the weight and worth of his testimony."[4] Impeachment is one important function of cross-examination, and accordingly "Wide latitude is permitted in cross-examination to show bias or motive and the affect on a witness's credibility."[5]

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[2] It is important to recall that the Constitution applies with equal force in Commission proceedings as it does in any other courtroom. For "[d]ue process always stands as a constitutionally grounded procedural safety net in administrative proceedings." *Dawson v. Miss. State Bd. of Massage Therapy*, 949 So. 2d 829, 831 (Miss. Ct. App. 2006) (internal quotation and citation omitted). Furthermore, the Court will reverse an administrative decision if it "violates one's constitutional rights." *Id.* (internal quotation and citation omitted); *see also State v. Allstate Ins. Co.*, 97 So. 2d 372, 376 (Miss. 1957) ("A standard or rein upon an administrative agency is a constitutional requirement, and its presence or absence is a judicial question").

[3] MRE 611(b).

[4] *Jackson v. State*, 924 So. 2d 531, 539 (Miss. Ct. App. 2005) (emphasis added) (internal quotation and citation omitted) (internal quotation, citation, and alteration omitted).

[5] *Bennett v. State*, 933 So. 2d 930, 947 (Miss. 2006).

As the Encyclopedia of Mississippi Law sets out, "[o]ne powerful tool of cross-examination is Rule 616's grant of power to question a witness about bias."[6] The rule itself is clear: "For the purpose of attacking the credibility of a witness, evidence of bias, prejudice, or interest of the witness for or against any party to the case is admissible."[7]

Accordingly, "[w]ide latitude is allowed in cross examination to show bias or motive for the purpose of affecting credibility."[8] "Parties may liberally cross-examine proffered witnesses regarding bias and interest."[9] "Not only is this right secured by our rules of evidence," but "it is a function of the confrontation clauses of federal and state constitutions."[10]

The United States Supreme Court has ruled that bias evidence is admissible because "[a] successful showing of bias on the part of a witness would have a tendency to make the facts to which he testified less probable in the eyes of the jury than it would be without such testimony."[11]

"Bias is a term used . . . to describe the relationship between a party and a witness which might lead the witness to slant, unconsciously or otherwise, his testimony in favor of or against a party."[12] "Bias may be induced by a witness' like, dislike, or fear of a party, or by the witness' self-interest."[13] As a result, "[p]roof of bias is almost always relevant because the jury, as finder of fact and weigher of credibility, has historically been entitled to assess all evidence which might bear on the accuracy and truth of a witness' testimony."[14]

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[6] David Neil McCarty, *Evidence*, 4 MS Prac. Encyclopedia MS Law § 33:65, Bias of Witnesses (ed. Jackson, Miller, & Campbell 2016).
[7] MRE 616.
[8] *Bennett v. State*, 933 So. 2d 930, 947 (Miss. 2006).
[9] *Johnson v. State*, 756 So. 2d 4, 7 (Miss. Ct. App. 1999).
[10] *Anthony v. State*, 108 So. 3d 394, 397-98 (Miss. 2013) (internal quotation, citation, and alteration omitted).
[11] *U.S. v. Abel*, 469 U.S. 45, 51 (1984).
[12] *Id.* at 52.
[13] *Id.*
[14] *Id.*

In accord with that frankly fundamental understanding of the value of impeaching a witness, our Supreme Court has noted that "'[e]vidence of the total amount paid [to an expert] could show direct and substantial financial bias.'"[15] Bias is a crucial topic of cross-examination. If one turns to the federal courts, the Courts of Appeal agree that an inquiry into the bias of a witness is a classic form of cross-examination. This rule can be found in the following federal cases from across the nation (and undoubtedly many more):

> **First Circuit**: Explaining that inquiring into bias due to financial incentives "is, of course, classic evidence of bias, which is routinely permitted on cross-examination."[16]
>
> **Second Circuit**: "Foreclosing inquiry into a witness' bias is error unless the jury has other sufficient information of that possible bias."[17]
>
> **Third Circuit**: A defendant must be allowed "to inquire about" the financial arrangements of a witness during cross, and this right "must be vigorously protected."[18]
>
> **Fourth Circuit**: "However, prohibiting a criminal defendant from cross-examining a witness on relevant evidence of bias and motive may violate the Confrontation Clause, if the jury is precluded from hearing evidence from which it could appropriately draw adverse inferences on the witness's credibility."[19]
>
> **Fifth Circuit**: "The potential bias of a witness is always relevant testimony, and it is permitted even on direct examination."[20]
>
> **Sixth Circuit**: "Bias is always relevant in assessing a witness's credibility."[21]
>
> **Seventh Circuit**: "Proof of bias or motive to lie is admissible impeachment evidence."[22]
>
> **Eighth Circuit**: "Cross-examination is the principal means by which the credibility of a witness and the truth of the testimony are checked, and therefore must be accorded great respect.[23]

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[15] *Wells v. Tucker*, 997 So. 2d 908, 916–17 (Miss. 2008) (quoting *Wells v. Tucker*, 997 So. 2d 925, 940 (Miss. Ct. App. 2007) (Griffis, P.J., dissenting).
[16] *Crowe v. Bolduc*, 334 F.3d 124, 132 (1st Cir. 2003).
[17] *U.S. v. Lawson*, 683 F.2d 688, 693 (2d Cir. 1982).
[18] *U.S. v. Harris*, 210 F.3d 165, 167 (3d Cir. 2000).
[19] *U.S. v. Turner*, 198 F.3d 425, 429 (4th Cir. 1999).
[20] *U.S. v. Powell*, 124 F.3d 655, 661 (5th Cir. 1997).
[21] *Schledwitz v. U.S.*, 169 F.3d 1003, 1015 (6th Cir. 1999).
[22] *U.S. v. Salem*, 578 F.3d 682, 686 (7th Cir. 2009).

Ninth Circuit: "Evidence is relevant to a matter of consequence to the determination of the case if it has a mere tendency to impeach a witness' credibility by a showing of bias or coercion."[24]

Tenth Circuit: "It is permissible impeachment to expose a witness's bias," as bias merely "describes the relationship between a witness and a party which might cause the witness to slant his testimony for or against the party."[25]

Eleventh Circuit: The near universal precedent on allowing impeachment of a witness as to bias is to "ensure that the jury know the facts that might motivate a witness in giving testimony . . . ."[26]

There is a reason for such startling accord across the deep valleys of our nation's jurisprudence. It is a paramount tenet of our law that an advocate must be allowed to inquire into a witness' bias. Restraining a reasonable inquiry into the bias of a witness—especially as to financial compensation—threatens to knock down this legal pillar.

Just as courts universally agree that bias is relevant, it must follow that this relevant evidence is discoverable. The Claimant's lawyer should have been able to pursue this relevant and admissible information during discovery. Because the Commission's Order unduly restricted the attorney to inquire into the expert's bias, it must be reversed.

CONCLUSION

A universal tenet of law allows an advocate to test the bias of a witness, and this inquiry serves the vital role of presenting reliable evidence to the factfinder. Accordingly, the position of MAJ is that a reasonable exploration into the financial arrangements of an expert must be allowed in order to fulfill our precedent, the Rules of Evidence, and our federal and state constitutions.

Respectfully submitted, this the 20th day of December, 2016.

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[23] *U.S. v. Peyro*, 786 F.2d 826, 828 (8th Cir. 1986) (citing to *Davis v. Alaska*, 415 U.S. 308, 316 (1974)).
[24] *U.S. v. Hankey*, 203 F.3d 1160, 1171 (9th Cir. 2000).
[25] *U.S. v. Baldridge*, 559 F.3d 1126, 1135 (10th Cir. 2009).
[26] *Smith v. Kemp*, 715 F.2d 1459, 1467 (11th Cir. 1983).

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CERTIFICATE OF SERVICE

I, David Neil McCarty, certify that I have served a copy of the above and foregoing document to the following via filing with the MEC electronic filing system:

Ms. Muriel B. Ellis, Clerk
MISSISSIPPI SUPREME COURT

Karl Steinberger
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HEIDELBERG, STEINBERGER, COLMER, & BURROW, P.A.

Walter Johnson
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And that I have further served a paper copy via first class U.S. Mail on the following:

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Jackson, MS 39296-5300

On December 20, 2016,

/s/ David Neil McCarty
David Neil McCarty